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FEDERAL REGISTER

OF THE UNITED STATES

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Washington, Friday, July 3, 1936

PRESIDENT OF THE UNITED STATES.

Increasing Rate of Duty on Slide Fasteners

By the President of the United States of America

A PROCLAMATION

WHEREAS pursuant to section 336 of Title III, Part II, of the Tariff Act of 1930 (46 Stat. 590, 701), the United States Tariff Commission has investigated the differences in costs of production of, and all other facts and conditions enumerated in said section with respect to, slide fasteners and parts thereof, being wholly or in part the growth or product of the United States and of and with respect to like or similar articles wholly or in part the growth or product of the principal competing country; and

WHEREAS in the course of said investigation a hearing was held, of which reasonable public notice was given and at which parties interested were given reasonable opportunity to be present, to produce evidence, and to be heard; and

WHEREAS the Commission has reported to the President the results of said investigation and its findings with respect to such differences in costs of production; and

WHEREAS the Commission has found it shown by the said investigation that the principal competing country is Japan, and that the duty expressly fixed by statute does not equalize the difference in the costs of production of the domestic articles and the like or similar foreign articles when produced in said principal competing country, and has specified in its report the increase in the rate of duty expressly fixed by statute found by the Commission to be shown by the said investigation to be necessary to equalize such difference; and

WHEREAS in the judgment of the President such rate of duty is shown by the said investigation of the Tariff Commission to be necessary to equalize such difference in costs of production:

NOW, THEREFORE, I, FRANKLIN D. ROOSEVELT, President of the United States of America, under and by virtue of the authority vested in me by section 336 (c), Title III, Part II of the said Act do hereby approve and proclaim an increase in the rate of duty expressly fixed in Paragraph 397 of Title I of the said Act on slide fasteners and parts thereof, wholly or in chief value of copper, brass, nickel, zinc, or other base metal, but not plated with platinum, gold, or silver, or colored with gold lacquer, and not specially provided for, from 45 per centum ad valorem to 66 per centum ad valorem, the rate found to be shown by the said investigation to be necessary to equalize such difference in costs of production.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the seal of the United States of America to be affixed.

DONE at the City of Washington this first day of July, in the year of our Lord nineteen hundred and thirty-
[SEAL] six, and of the Independence of the United States of America, the one hundred and sixtieth.

FRANKLIN D ROOSEVELT

By the President:

WILLIAM PHILLIPS
Acting Secretary of State.

[No. 2181]

[F. R. Doc. 1069—Filed, July 2, 1936; 10:48 a. m.]

Executive Order

AMENDMENT OF SUBDIVISION XI, SCHEDULE B, CIVIL SERVICE RULES

By virtue of and pursuant to the authority vested in me by the provisions of paragraph Eighth of Subdivision SECOND of section 2 of the Civil Service Act of January 16, 1883 (22 Stat. 403, 404), Subdivision XI, Schedule B, of the Civil Service Rules is hereby amended by adding thereto the following paragraph to permit employments thereunder by the Navy Department in areas outside the continental limits of the United States when in the opinion of the Secretary of the Navy the best interests of the service so require:

"2. Any person employed in an area outside the continental limits of the United States (except the Canal Zone and Alaska), when in the opinion of the Secretary of the Navy the best interests of the service so require."

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
July 1st, 1936.

[No. 7404]

[F. R. Doc. 1080—Filed, July 2, 1936; 12:55 p. m.]

DEPARTMENT OF AGRICULTURE.

Agricultural Adjustment Administration.

E. C. R.—B-1 Revised—Supplement (b) Issued June 29, 1936

1936 AGRICULTURAL CONSERVATION PROGRAM—EAST CENTRAL REGION

BULLETIN NO. 1 REVISED [1]—SUPPLEMENT (B)

Division of Soil Conserving Payment on Cotton Farms in Designated Counties

In the counties designated below, for any farm on which the number of acres diverted from the cotton soil-depleting base equals or exceeds the number of acres diverted from each of the other soil-depleting bases for such farm, the

[1] 1 F. R. 291.

FEDERAL REGISTER

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TABLE OF CONTENTS

Department of Agriculture:
Agricultural Adjustment Administration:
Agricultural conservation program, 1936: Page
East central region, Bulletin No. 1, revised, Supplement (b) 837
Supplement (c) 838
Supplement (h) 839
Supplement (i) 839
Supplement (j) 839
East central region, Bulletin No. 3, Supplement (a) 839
North central region, Bulletin No. 1-D 839
Southern region, Bulletin No. 1, revised, Supplement (l) 841
Southern region, Bulletin No. 2, Supplement (c) 842
Bureau of Agricultural Economics:
Order of designation of tobacco markets, South Carolina 842
Federal Trade Commission:
Trade practice rules for the Paper Drinking Straw Manufacturing Industry 842
Interstate Commerce Commission:
Application for relief from long-and-short-haul provision, Interstate Commerce Act:
Binder twine from New Orleans, La., to Minneapolis and St. Paul, Minn. 844
Cement from Leeds, Ala., to Albany, Ga. 844
Gasoline and kerosene from Panama City to River Junction and Telogia, Fla. 844
Gravel from Riverton, Ind., to Bethel, Ill. 844
Molasses and syrup from Louisiana to Virginia ports 845
Rosin and related articles to Cincinnati, Ohio 844
Salt from Edith, Okla., to interstate points 844
Notice of hearing, application for authority to operate as common carrier:
Aller, Kenneth P. 845
Star Cartage Company 845
Wootton, Godfrey Frank 845
President of the United States:
Executive Order:
Amendment of Subdivision XI, Schedule B, Civil Service Rules 837
Proclamation:
Increasing rate of duty on slide fasteners 837

Class I or soil-conserving payment with respect to such farm shall be divided as follows:

(1) Thirty-seven and one-half percent to the producer who furnished the land;

(2) Twelve and one-half percent to the producer who furnished the workstock and equipment;

(3) Fifty percent to be divided among the producers who are parties to a lease or operating agreement for such farm in the proportion that such producers are entitled to share in 1936 in those soil-depleting crops, or the proceeds thereof, with respect to which the soil-conserving payment is made.

The provisions of this Supplement shall be applicable in the following counties of western Tennessee and western Kentucky:

(1) In Tennessee, that group of contiguous counties west of the Tennessee River, as follows: Benton, Carroll, Chester, Crockett, Decatur, Dyer, Fayette, Gibson, Hardemon, Hardin, Haywood, Henderson, Henry, Lake, Lauderdale, Madison, McNairy, Obion, Shelby, Tipton, and Weakley.

(2) In Kentucky, those counties bordering on the State of Tennessee and the Mississippi River, as follows: Fulton and Hickman.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 29th day of June 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 1052—Filed, July 1, 1936; 11:42 a. m.]

E. C. R.—B-1 Revised—Supplement (c) Issued June 30, 1936

1936 AGRICULTURAL CONSERVATION PROGRAM—EAST CENTRAL REGION

BULLETIN NO. 1 REVISED—SUPPLEMENT (C)

Classification of Crops

PART IV. Classification of Crops, of East Central Region Bulletin No. 1 Revised,[1] is hereby amended as follows:

Section 1, Soil-Depleting Crops, is amended by changing subsections (h) and (k) to read as follows, and by adding the following new subsection (l):

(h) Sweet sorghums harvested.

(k) *Summer legumes:* soybeans, field peas, and cowpeas, in all States of the East Central Region other than Virginia, North Carolina, and Tennessee, when harvested for grain or hay, *except* as provided in section 2, Soil-Conserving Crops; soybeans when harvested for seed for crushing in Virginia, North Carolina, and Tennessee.

(l) Bulbs and flowers.

Section 2, Soil-Conserving Crops, is amended by changing subsections (c) and (g) to read as follows, and by adding the following new subsection (i):

(c) *Summer Legumes:*

(1) Soybeans, *except* when harvested for seed for crushing, velvet beans, and cowpeas, in Virginia, North Carolina, and Tennessee; the same crops, when not harvested for grain or hay, or when harvested for hay and followed by a winter cover crop, in all other States of the East Central Region.

(2) Crotalaria.

(g) *Small Grains:*

(1) Rye, oats, barley, wheat, buckwheat, and grain mixtures, when not harvested for grain or hay.

(2) *Winter Cover Crops:* Rye, oats, barley, and grain mixtures, when harvested for grain or hay and immediately followed by or grown in combination with a legume, notwithstanding the provisions of subsections (a) and (b) of this section 2 relating to nurse crops.

(i) Sweet sorghums not harvested.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 30th day of June 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 1050—Filed, July 1, 1936; 11:41 a. m.]

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[1] 1 F. R. 291.

E. C. R.—B-1 Revised—Supplement (h) Issued June 30, 1936

1936 AGRICULTURAL CONSERVATION PROGRAM—EAST CENTRAL REGION

BULLETIN NO. 1 REVISED—SUPPLEMENT (H)

Definitions

PART I, "Definitions," of East Central Region Bulletin No. 1 Revised[1] is hereby amended by revising the definitions of person and of soil-building allowance to read as follows:

"Person" means an individual, partnership, association, or corporation, and wherever applicable, a state, a political subdivision of a state, or any agency thereof, or any other Government agency that may be designated by the Secretary.

"Soil-Building Allowance" means the largest amount for any farm that may be obtained as a soil-building payment. The soil-building allowance for any farm shall be computed by multiplying the number of acres of crop land on the farm used in 1936 for soil-conserving crops by $1.00 except that if such acreage is less than 10 acres the soil-building allowances shall be $10.00. For purposes of computing this allowance, the acreage of soil-conserving crops shall include the number of acres devoted to winter cover crops or green manure crops seeded following vegetable crops (including potatoes and sweet potatoes), bulbs, or flowers, and plowed or disced under as green manure between January 1, 1936 and October 31, 1936, after having attained at least two months' growth.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 30th day of June, 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 1053—Filed, July 1, 1936; 11:42 a. m.]

E. C. R.—B-1 Revised—Supplement (I) Issued June 30, 1936

1936 AGRICULTURAL CONSERVATION PROGRAM—EAST CENTRAL REGION

BULLETIN NO. 1 REVISED—SUPPLEMENT (I)

Food and Feed Crops

Section 7 of Part II of East Central Region Bulletin No. 1 Revised[1] is hereby amended by adding the following new subsection (c):

(c) In the case of any farm for which the county committee finds that the production of food and feed crops in 1936 is less than the normal production of such crops for the farm because of drought or other unfavorable weather conditions, the deductions provided for in subsection (a) of Section 5 of Part II shall not be made with respect to any acreage of food and feed crops required to provide a normal production of food and feed crops on such farm in 1936.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 30th day of June 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 1047—Filed, July 1, 1936; 11:40 a. m.]

E. C. R.—B-1 Revised—Supplement (J) Issued June 30, 1936

1936 AGRICULTURAL CONSERVATION PROGRAM—EAST CENTRAL REGION

BULLETIN NO. 1 REVISED—SUPPLEMENT (J)

Association Expenses

Part II of East Central Region Bulletin No. 1 Revised[1] is hereby amended by adding after section 7 the following new section:

SECTION 8. *Association Expenses.*—In computing payments hereunder, there shall be deducted from the payment to any person with respect to a farm or farms in a county all or such part as shall, under rules prescribed by the Secretary, be determined to be such person's pro rata share of the estimated administrative expenses incurred and to be incurred by the County Agricultural Conservation Association of the county in which such farm or farms are located, in cooperating in carrying out in such county the 1936 Agricultural Conservation Program. As provided in the Articles of Association, as amended, any person who previously has not become a member of the County Agricultural Conservation Association of the county in which his farm or farms are located, shall become a member thereof by virtue of his signing an application for payment with respect to such farm or farms.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 30th day of June 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 1046—Filed, July 1, 1936; 11:40 a. m.]

E. C. R.—B-3—Supplement (a) Issued June 30, 1936

1936 AGRICULTURAL CONSERVATION PROGRAM—EAST CENTRAL REGION

BULLETIN NO. 3—SUPPLEMENT (A)

Soil-Conserving Payment

Section 28, Part III, Soil-Conserving Payment in Connection with Interplanted Crops and Small Grain Crops, of E. C. R. Bulletin No. 3[2] is hereby amended to read as follows:

SECTION 28. *Soil-Conserving Payment in Connection with Interplanted Crops, Small Grain Crops, and Summer Legumes.*—No soil-conserving payment shall be made pursuant to the provisions of Section 2 of Part II of East Central Region Bulletin No. 1, Revised, with respect to diversion from the general soil-depleting base if such diversion is accomplished by changing from food and feed grains, or from summer legumes (in Delaware, Maryland, West Virginia, or Kentucky), used in establishing the general soil-depleting base, to any of the following soil-conserving crops in 1936.

(a) Summer legumes interplanted with a soil-depleting crop.

(b) Small grains immediately followed by or grown in combination with a legume.

(c) Small grains not harvested for grain or hay.

(d) Summer legumes harvested for hay and followed by a winter cover crop in Delaware, Maryland, West Virginia, or Kentucky.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 30th day of June 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 1051—Filed, July 1, 1936; 11:42 a. m.]

N. C. R.—B-1-D

1936 AGRICULTURAL CONSERVATION PROGRAM—NORTH CENTRAL REGION

BULLETIN NO. 1-D

Pursuant to the authority vested in the Secretary of Agriculture under Section 8 of the Soil Conservation and Domestic Allotment Act, North Central Region Bulletin No. 1, Revised, as amended by North Central Region Bulletins No. 1A, No. 1B, and No. 1C,[3] is hereby amended as follows:

PART I. "Definitions", the definition of the term "person" is amended to read as follows:

"Person" means an individual, partnership, association, or corporation. The term person shall also include, wherever applicable, a State, a political subdivision of a State, or any agency thereof, and any other governmental agencies that may be designated by the Secretary.

PART I. "Definitions", the definition of soil building allowance is amended to read as follows:

"Soil-Building Allowance" means the largest amount for any farm that may be obtained as a soil building payment. The soil

[1] 1 F. R. 291.

[2] 1 F. R. 438.

[3] 1 F. R. 275, 401, 613, 756.

building allowance for any farm shall be computed by multiplying the number of acres of crop land on the farm used in 1936 for soil conserving crops by one dollar ($1.00), except that if such acreage is less than 10 acres the soil building allowance shall be ten dollars ($10.00). For the purpose of computing this allowance the acreage of soil conserving crops shall include the number of acres devoted to winter cover crops or green manure crops, seeded following commercial bulb, flower, or vegetable crops, including potatoes and sweet potatoes, and plowed or disced under as green manure between January 1, 1936, and October 1, 1936, after having attained at least two months' growth, irrespective of what other crops are planted on such acres in 1936. In no event shall the same crop land be considered more than once in determining the soil building allowance for a farm.

PART II. "Rates and Conditions of Payment", the last sentence of the footnote numbered 1 is amended to read as follows:

Where the yield of the major soil depleting crop for any farm in a county does not accurately reflect the productivity of such farm, the yield of such other crop or crops as do accurately reflect the productivity of such farm may be employed: *Provided*, That the productivity indexes for such farms shall, if necessary, be adjusted so as to be fair and equitable as compared with the productivity indexes for other farms in the county having similar soils or productive capacity and as contrasted with other farms in the county having different soils and productive capacity.

PART II. "Rates and Conditions of Payment", that portion of subsection (b) of Section 2, included in the column entitled "Maximum acreage with respect to which payment will be made", is amended to read as follows:

Thirty-five percent of the cotton soil depleting base, except that if such base is 5 acres or less, payment may be made for diverting all or any part of such acreage not in excess of 2 acres.

Said subsection (b) of Section 2 is further amended by striking out the footnote numbered 2.

PART II. "Rates and Conditions of Payment", section 6 is amended by striking out the reference to and the footnote numbered 4 and renumbering the footnote numbered 3 as footnote number 2.

PART II. "Rates and Conditions of Payment", is further amended by adding at the end thereof the following new section:

SECTION 9. *Association Expenses.*—In computing payments hereunder there shall be deducted from the payment to any person with respect to a farm or farms in a county all or such part as shall, under rules prescribed by the Secretary, be determined to be such person's pro rata share of the estimated administrative expenses incurred and to be incurred by the County Agricultural Conservation Association of the county in which such farm or farms are located, in cooperating in carrying out in such county the 1936 Agricultural Conservation Program. As provided in the Articles of Association, as amended, any person who previously has not become a member of the County Agricultural Conservation Association of the county in which his farm or farms are located shall become a member thereof by virtue of his signing an application for payment with respect to such farm or farms.

PART III. "Establishment of Bases", section 1 is amended by renumbering the footnote numbered 5 as footnote number 3.

PART III. "Establishment of Bases", the first sentence of subsection (a) of section 3 is amended to read as follows:

(a) *Cotton and Tobacco.*—The county committee may recommend for approval by the Secretary, as part of the total soil depleting base, a cotton soil depleting base and a separate tobacco soil depleting base for Burley, dark-air cured, cigar-leaf, and Eastern Ohio Export tobaccos, respectively.

PART IV. "Classification of Crops", item (n) of section 1 is amended to read as follows:

(n) Any acreage of crop land in 1936 which before July 1, 1936, is not used for the production of a soil conserving or a soil depleting crop or is not devoted to a neutral use as provided in Section 3 of this Part IV, shall be regarded as used for the production of a soil depleting crop.

PART IV. "Classification of Crops", section 1 is amended by adding at the end thereof the following new item:

(p) Commercial bulbs and flowers.

PART IV. "Classification of Crops", the first paragraph of Section 2 is amended by adding at the end thereof the following new sentences:

Any acreage of rye, oats, wheat, barley, or grain mixtures used as a nurse crop clipped green or pastured sufficiently to prevent grain formation as specified in any item of this Section 2 and any acreage fallowed as specified in subdivision (2) of item (m) of this Section 2, shall be regarded as devoted to the production of a soil conserving crop only if such acreage is in a solid block contiguous to the entire side or end of a field and the line between the clipped, pastured, or fallowed portion and the remaining portion of the field is straight. Any crops which are classified as soil conserving, except new seedings of such crops, shall be regarded as devoted to the production of a soil conserving crop only if such crops are not plowed before July 1, 1936; new seedings of such crops shall be similarly regarded only if such new seedings are not plowed before having attained at least ninety days' growth.

PART IV. "Classification of Crops", item (j) of Section 2 is amended by striking out everything after the word "committee" in the clause numbered "(3)", and inserting in lieu thereof a period.

PART IV. "Classification of Crops", section 3 is amended by adding at the end thereof the following new paragraph:

(f) *For all Areas Except Area "A".*—An acreage of idle crop land and crop land summer fallowed in 1936 not in excess of the sum of the acreage of idle and fallow crop land on a farm in 1935 less the number of acres by which the total soil depleting base established for such farm exceeds the acreage of soil depleting crops harvested on such farm in 1935.

PART V. "Miscellaneous Provisions", item (c) of Section 2 is amended to read as follows:

(c) For the purpose of determining the eligibility of an operator for a grant where the farming unit operated by him includes a farm or farms located in two or more adjoining counties, such farm or farms shall be regarded as located in the county in which the principal dwelling on such farming unit is located; or, if there is no dwelling on such farming unit, such farm or farms shall be regarded as located in the county in which the major portion of such farming unit is located.

PART V. "Miscellaneous Provisions", Section 2 is amended by adding at the end thereof the following new paragraphs:

(e) No person whose right to receive any portion of any crop grown on a farm with respect to which any payment may be made pursuant to the provisions of bulletins issued in connection with the 1936 Agricultural Conservation Program in the North Central Region, arises and exists solely by virtue of a creditor relationship to the owner of, or share-tenant or share-cropper on, such farm shall be eligible to make application for a grant except as may hereafter be provided. The terms owner, operator, share-tenant, or share-cropper shall not be deemed to include any person whose interest in, or share of, any crop grown on a farm in 1936 is acquired or received solely as payment or security for a debt unless such person has become the legal and beneficial owner of such farm.

(f) The term "owner" as used in bulletins issued in connection with the 1936 Agricultural Conservation Program in the North Central Region does not refer exclusively to a person who has the legal title to a farm, but is intended to describe the person who for 1936 has the right to possession or control of a farm and to the profits or rents therefrom. If a farm is operated by one who rents it on shares from another, the latter is, for the purposes of the program, regarded as the owner of such farm. A person's status as owner of a farm is, for the purposes of the 1936 Agricultural Conservation Program in the North Central Region, not affected by the fact that he is or becomes the obligor upon any instrument relating to the farm as security for a debt.

(g) For the purposes of the 1936 Agricultural Conservation Program in the North Central Region, a person will be regarded as owning more than one farm only if he occupies a similar or comparable status with respect to all such farms. The following examples are illustrations of the application of the rule to be observed in determining whether a person owns more than one farm: (1) If one farm is owned solely by a person and another farm is owned only in part by such person, such farms will be regarded as owned by different persons; (2) If a person owns and operates one farm and owns another farm which he has rented on shares to another, such farms will be regarded as owned by the same person; (3) If a person owns a one-third interest in one farm with one party and such person owns a one-half interest in another farm with another party, such farms will be regarded as owned by different persons; if such person owned such two farms with the same party, such farms will be regarded as owned by the same person; (4) If a person as owner is entitled to receive under his leasing agreement with respect to one farm 40 percent of the crops produced thereon, or the proceeds thereof, and such person is entitled to receive under his leasing agreement with respect to another farm 50 percent of the crops and livestock produced thereon, or the proceeds thereof, such farms will be regarded as owned by the same person; (5) If one farm is owned by a person in his individual capacity and another farm is owned by the same person in a representative or fiduciary capacity, such farms will be regarded as owned by different persons; (6) If more than one farm is owned by the same person who acts in a different representative or fiduciary capacity with respect to each such farm, such farms will be regarded as owned by different persons; (7) If a person's rights to the profits or rents from more than one farm arise under separate written instruments which severally provide that such profits or

rents are to be credited to the accounts of the persons transferring such rights, such farms will be regarded as owned by different persons; for example, where a person's rights to the profits or rents from one farm in a county arise under a grant of possession from one party containing a provision like that hereinbefore described and such person's rights to the profits or rents from a second farm in such county arise from a similar grant of possession from another party, and such person also has rights to the profits or rents from a third farm in the county not arising from any grant of possession, such three farms will be regarded as owned by three different persons.

In determining whether a person operates more than one farm in the county, the rule hereinbefore outlined with respect to determining ownership shall be applied.

PART V. "Miscellaneous Provisions" is amended by adding at the end thereof the following new sections:

SECTION 9. *Determination of Person to Whom Payment will be Made.*—Except as may hereafter be provided, for the purposes of the 1936 Agricultural Conservation Program in the North Central Region, a person will not be regarded as the owner or operator of a farm unless such person owned or operated such farm, as the case may be, on June 30, 1936, and has been such owner or operator for a period of at least 60 consecutive days. In the event of death, incompetency, abandonment, or discharge or release from a representative capacity the period of ownership or operation, as the case may be, may upon recommendation of the county committee and upon approval by the Secretary or his duly authorized representative, be computed as follows:

(a) *In the Event of Death.*—If, because of the death of any party owning or operating a farm, the person, whether the deceased, his heir or heirs, or the duly appointed representative, if any, of such decedent's estate, who owns or operates such farm on June 30, 1936, has not owned or operated such farm, as the case may be, for 60 consecutive days, the period of such person's ownership or operation of such farm, as the case may be, shall be deemed to include the time of ownership or operation of such farm, as the case may be, by the deceased person, his heir or heirs, or the duly appointed representative, if any, of his estate.

(b) *In the Event of Incompetency.*—If, because of the adjudication of incompetency of any person owning or operating a farm, the person, whether the person who was adjudicated incompetent, his relative or relatives, or his duly appointed representative, if any, who owns or operates such farm on June 30, 1936, has not owned or operated such farm, as the case may be, for 60 consecutive days, the period of such person's ownership or operation of such farm, as the case may be, shall be deemed to include the time of ownership or operation, of such farm, as the case may be, by the person who was adjudicated incompetent prior to such adjudication, his relative or relatives, or his duly appointed representative, if any.

(c) *In the Event of Abandonment.*—If, because of abandonment by any party owning or operating a farm, the person, whether the person who has abandoned the farm, his relative or relatives, or his duly appointed representative, if any, who owns or operates such farm on June 30, 1936, as the case may be, has not owned or operated such farm, as the case may be, for 60 consecutive days, the period of such person's ownership or operation of such farm, as the case may be, shall be deemed to include the time of ownership or operation of such farm, as the case may be, by the person who has abandoned the farm, his relative or relatives, or his duly appointed representative, if any.

(d) *In the Event of Discharge or Release from Representative Capacity.*—If, because of the discharge or release from a representative or fiduciary capacity of any party owning or operating a farm, the person, whether the representative or fiduciary who has been discharged or released from his representative or fiduciary capacity or the person or persons who succeed such representative as owner or operator, as the case may be, who owns or operates such farm on June 30, 1936, has not owned or operated such farm, as the case may be, for 60 consecutive days, the period of such person's ownership or operation of such farm, as the case may be, shall be deemed to include the time of ownership or operation of such farm, as the case may be, by the representative who has been released or discharged from his representative or fiduciary capacity and the person or persons who succeed such representative or fiduciary as owner or operator of such farm, as the case may be.

No soil building payment will be made to the person who is regarded as the owner or operator of a farm for any soil building practices carried out on such farm after he has ceased to own or operate such farm, as the case may be. In determining the number of days of ownership or operation, a fraction of a day will be considered as a whole day. In the event more than one person has owned or operated a farm on June 30, 1936, and for 60 consecutive days, the person who has owned or operated such farm prior to June 30, 1936, shall be regarded as the owner or operator of such farm, as the case may be.

For the purpose of this Section 9, the term "operator" shall be deemed to include sharecroppers.

SECTION 10. *Persons Eligible to Execute an Application for a Grant and Receive Payment Thereunder Upon Happening of Certain Contingencies on or After July 1, 1936.*—(a) *In the Event of Death.*—If an owner or operator of a farm dies on or after July 1, 1936, and before making an application for a grant with respect to such farm, the administrator or executor appointed by a court of competent jurisdiction for such decedent's estate will be eligible to make an application for a grant with respect to such farm as owner or operator, as the case may be. If an administrator or executor is not appointed for such estate, all the heirs of such decedent will be eligible to make application for a grant with respect to such farm as owner or operator, as the case may be. If, prior to his death, the decedent had made an application for a grant but did not receive the payment thereunder, such payment will be made to the administrator or executor appointed by a court of competent jurisdiction for such estate. If an administrator or executor is not appointed for such estate, such payment will be made to all the heirs of such decedent.

(b) *In the Event of Incompetency.*—If an owner or operator of a farm is adjudged incompetent by a court of competent jurisdiction on or after July 1, 1936, and before making an application for a grant with respect to such farm, the guardian or committee appointed by a court of competent jurisdiction for such incompetent's estate will be eligible to make an application for a grant with respect to such farm as owner or operator, as the case may be. If the person adjudicated incompetent had, prior to such adjudication, made an application for a grant but did not receive the payment thereunder, such payment will be made to the guardian or committee appointed by a court of competent jurisdiction for such incompetent's estate.

(c) *In the Event of Abandonment.*—If an owner or operator of a farm abandons such farm on or after July 1, 1936, and before making an application for a grant with respect to such farm, the person appointed by a court of competent jurisdiction to control and conserve the assets of the abandoned estate will be eligible to make an application for a grant with respect to such farm as owner or operator, as the case may be. If prior to his abandonment, the person who abandons such farm had made an application for a grant but did not receive the payment thereunder, such payment will be made to the person appointed by a court of competent jurisdiction to control and conserve the assets of such abandoned estate.

(d) *In the Event of Discharge or Release from Representative Capacity.*—If an administrator, executor, trustee, guardian, committee, receiver, conservator, or other representative or fiduciary who is the owner or operator of a farm, is discharged or released from such representative position by a court of competent jurisdiction on or after July 1, 1936, and before making an application for grant, the person or persons who succeed such representative as owner or operator of such farm will be eligible to execute an application for a grant with respect to such farm as owner or operator, as the case may be. If prior to his discharge or release, the person who has been discharged or released from his representative position had made an application for a grant but did not receive the payment thereunder, such payment will be made to the person or persons who succeed such representative as owner or operator of such farm.

For the purpose of this Section 10 the term "operator" shall be deemed to include sharecroppers.

SECTION 11. *Fractions.*—(a) All calculations relative to acres, yields, or percentages shall be carried to two decimal places. All entries of acres, yields, or percentages on the application for grant shall be rounded to one decimal place. In rounding numbers to one decimal place, fractions amounting to five hundredths (0.05) or less shall be dropped, and fractions amounting to six hundredths (0.06) or more shall be considered as a tenth of a unit.

(b) All calculations relative to ratios shall be carried to four decimal places. All entries of ratios on the application for grant shall be rounded to three decimal places. In rounding numbers to three decimal places fractions amounting to five ten-thousandths (0.0005) or less shall be dropped and fractions amounting to six ten-thousandths (0.0006) or more shall be considered as a thousandth of a unit.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 30th day of June 1936.

[SEAL]

H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 1049—Filed, July 1, 1936; 11:41 a. m.]

S. B.—B-1, Revised—Supplement (1)

1936 AGRICULTURAL CONSERVATION PROGRAM—SOUTHERN REGION

BULLETIN NO. 1, REVISED—SUPPLEMENT (L)

Section 9 of part II of Southern Region Bulletin No. 1, Revised,[1] is hereby amended by adding the following new subsection (c):

(c) In the case of any farm for which the county committee finds that the production of food and feed crops in 1936 is less than the normal production of such crops for the farm because of drought or other unfavorable weather conditions, the deductions

[1] 1 F. R. 281.

provided for in subsection (a) of section 7 of part II shall not be made with respect to any acreage of food and feed crops required to provide a normal production of food and feed crops on such farm in 1936.

In witness whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 30th day of June, 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 1048—Filed, July 1, 1936; 11:40 a. m.]

S. R.—B-2—Supplement (c)

1936 AGRICULTURAL CONSERVATION PROGRAM—SOUTHERN REGION

BULLETIN NO. 2—SUPPLEMENT (C)

Part III of Southern Region Bulletin No. 2[1] is hereby amended by adding the following practices:

6. The application of basic slag: When applied between January 1, 1936, and October 31, 1936, according to practices approved by the State Agricultural Conservation Committee on pastures or soil-conserving crops excluding soybeans, cowpeas, velvet beans, and peanuts.

	Per acre
Not less than 100 pounds per acre	$0.35
Not less than 200 pounds per acre	.70
Not less than 300 pounds per acre	1.05
Not less than 400 pounds per acre	1.40
Not less than 500 pounds per acre	1.75
Not less than 600 pounds per acre	2.10

7. Application of manganese sulphate: When applied between January 1, 1936, and October 31, 1936, according to practices approved by the State Agricultural Conservation Committee on soil-conserving crops.

	Per acre
Not less than 25 pounds per acre	$0.50
Not less than 50 pounds per acre	1.00
Not less than 75 pounds per acre	1.50
Not less than 100 pounds per acre	2.00

In witness whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 30th day of June 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 1054—Filed, July 1, 1936; 11:43 a. m.]

Bureau of Agricultural Economics.

ORDER OF DESIGNATION OF TOBACCO MARKETS

SOUTH CAROLINA

Whereas, the Act of Congress approved August 23, 1935 (49 Stat. 731), entitled "The Tobacco Inspection Act" contains the following provisions:

SEC. 2. That transactions in tobacco involving the sale thereof at auction as commonly conducted at auction markets are affected with a public interest; that such transactions are carried on by tobacco producers generally and by persons engaged in the business of buying and selling tobacco in commerce; that the classification of tobacco according to type, grade, and other characteristics affects the prices received therefor by producers; that without uniform standards of classification and inspection the evaluation of tobacco is susceptible to speculation, manipulation, and control, and unreasonable fluctuations in prices and quality determinations occur which are detrimental to producers and persons handling tobacco in commerce; that such fluctuations constitute a burden upon commerce and make the use of uniform standards of classification and inspection imperative for the protection of producers and others engaged in commerce and the public interest therein.

SEC. 5. That the Secretary is authorized to designate those auction markets where tobacco bought and sold thereon at auction, or the products customarily manufactured therefrom, moves in commerce. Before any market is designated by the Secretary under this section he shall determine by referendum the desire of tobacco growers who sold tobacco at auction on such market during the preceding marketing season. The Secretary may at his discretion hold one referendum for two or more markets or for all markets in a type area. No market or group of markets shall be designated by the Secretary unless two-thirds of the growers voting favor it. The Secretary shall have access to the tobacco records of the Collector of Internal Revenue and of the several collectors of internal revenue for the purpose of obtaining the names and addresses of growers who sold tobacco on any auction market, and the Secretary shall determine from said records the eligibility of such grower to vote in such referendum, and no grower shall be eligible to vote in more than one referendum. After public notice of not less than thirty days that any auction market has been so designated by the Secretary, no tobacco shall be offered for sale at auction on such market until it shall have been inspected and certified by an authorized representative of the Secretary according to the standards established under this Act, except that the Secretary may temporarily suspend the requirement of inspection and certification at any designated market whenever he finds it impracticable to provide for such inspection and certification because competent inspectors are not obtainable or because the quantity of tobacco available for inspection is insufficient to justify the cost of such service: *Provided*, That, in the event competent inspectors are not available, or for other reasons, the Secretary is unable to provide for such inspection and certification at all auction markets within a type area, he shall first designate those auction markets where the greatest number of growers may be served with the facilities available to him. No fee or charge shall be imposed or collected for inspection or certification under this section at any designated auction market. Nothing contained in this Act shall be construed to prevent transactions in tobacco at markets not designated by the Secretary or at designated markets where the Secretary has suspended the requirement of inspection or to authorize the Secretary to close any market.

and

Whereas, pursuant to said Act a referendum has been held among growers of fire-cured tobacco in South Carolina, commonly referred to as Type 13 tobacco, who sell tobacco on the markets named below, in which referendum said growers were given an opportunity to vote for or against the designation, as provided in Section 5 of said Act, of the auction markets of Lake City, Darlington, and Pamplico, all in the State of South Carolina; and

Whereas, more than two-thirds of the growers of tobacco voting in said referendum voted in favor of said designation,

Now, therefore, by virtue of the authority conferred upon me by Section 5 of The Tobacco Inspection Act and the affirmative results of the referendum conducted thereunder, the cities of Lake City, Darlington, and Pamplico, South Carolina, are designated as markets where the tobacco bought and sold thereon at auction, or the products customarily made therefrom, moves in commerce.

It is hereby ordered that, effective 30 days from this date no tobacco shall be offered for sale at auction on the above-named markets until it shall have been inspected and certified by an authorized representative of the United States Department of Agriculture according to standards established under the Act; provided, however, that the requirement of inspection and certification may be suspended at such times as it is found impracticable to provide inspectors or when the quantity of tobacco available for inspection is insufficient to justify the cost of such service. No fee or charge shall be imposed or collected for the inspection and certification of tobacco sold or offered for sale at auction on the markets designated herein.

In testimony whereof, I have hereunto set my hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, this 1st day of July 1936.

[SEAL] R. G. TUGWELL,
Acting Secretary of Agriculture.

[F. R. Doc. 1067—Filed, July 1, 1936; 2:55 p. m.]

FEDERAL TRADE COMMISSION.

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 30th day of June A. D. 1936.

Commissioners: Charles H. March, Chairman; Garland S. Ferguson, Jr., Ewin L. Davis, W. A. Ayres, Robert E. Freer.

[1] 1 F. R. 316.

File No. 21-251

IN THE MATTER OF TRADE PRACTICE RULES FOR THE PAPER DRINKING STRAW MANUFACTURING INDUSTRY

PROMULGATION OF TRADE PRACTICE RULES

Due proceedings having been had under the trade practice conference procedure in pursuance of the Act of Congress approved September 26, 1914 (38 Stat. 717).

It is now ordered that the trade practice rules of Group I which have been approved by the Commission in this proceeding be, and the same are, hereby promulgated for the Paper Drinking Straw Manufacturing Industry, as follows:

TRADE PRACTICE RULES—PAPER DRINKING STRAW MANUFACTURING INDUSTRY

Group I

The unfair trade practices which are embraced in Group I rules are considered to be unfair methods of competition within the decisions of the Federal Trade Commission and the Courts, and appropriate proceedings in the public interest will be taken by the Commission to prevent the use of such unlawful practices in or directly affecting interstate commerce.

Rule 1.

The practice of selling goods below the seller's cost, with the intent and with the effect of injuring a competitor and where the effect may be to substantially lessen competition or tend to create a monopoly or unreasonably restrain trade, is an unfair trade practice; all elements recognized by good accounting practice as proper elements of such cost shall be included in determining cost under this rule.

Rule 2.

The false marking or branding of products of the industry, with the tendency, capacity, or effect of misleading or deceiving purchasers with respect to the grade, quality, quantity, substance, character, nature, origin, size, or preparation, or in any other material respect of the goods purchased, is an unfair trade practice.

Rule 3.

The imitation of the trade-marks, trade names, brands, labels, or other marks of identification of competitors, having the tendency, capacity, or effect of misleading or deceiving purchasers or prospective purchasers, is an unfair trade practice.

Rule 4.

The making, or causing or permitting to be made or published, any false, untrue, or deceptive statement or representation, by way of advertisement or otherwise, concerning the grade, quality, quantity, substance, character, nature, origin, size, or preparation, or in any other material respect of any product of the industry sold or offered for sale, having the tendency, capacity, or effect of misleading or deceiving purchasers or prospective purchasers, is an unfair trade practice.

Rule 5.

The defamation of competitors by falsely imputing to them dishonorable conduct, inability to perform contracts, questionable credit standing, or by other false representations, or the false disparagement of the grade or quality of their goods, with the tendency, capacity, or effect of misleading or deceiving purchasers or prospective purchasers, or with the tendency, capacity, or effect of unduly hampering, injuring, or prejudicing such competitors in the conduct of their businesses, is an unfair trade practice.

Rule 6.

Wilfully inducing or attempting to induce the breach of existing contract or contracts between competitors and their customers or their suppliers by any false or deceptive means whatsoever, or wilfully interfering with or obstructing the performance of any such contractual duties or services by any such means, with the purpose and effect of unduly hampering, injuring, or prejudicing competitors in their businesses, is an unfair trade practice.

Rule 7.

The publishing or circulating by any member of the industry of false or misleading price quotations, price lists, terms of sale or discounts, having the tendency, capacity, or effect of misleading or deceiving purchasers or prospective purchasers, is an unfair trade practice.

Rule 8.

Price discrimination, as between purchasers of industry products, whether in the form of discounts, allowances, terms, services, or otherwise, contrary to Section 2 of the Clayton Act, is an unfair trade practice.

Rule 9.

The secret payment or allowance of rebates, refunds, excess allowances, or unearned commissions, credits, or discounts, whether in the form of money, free goods, extras, or otherwise, or secretly extending to certain purchasers special services or privileges not extended to all purchasers under like terms and conditions, with the intent and with the effect of injuring a competitor, and where the effect may be to substantially lessen competition or tend to create a monopoly or to unreasonably restrain trade, is an unfair trade practice.

Rule 10.

Directly or indirectly to give, or permit to be given, or offer to give, money or anything of value to agents, employees, or representatives of customers or prospective customers, or to agents, employees, or representatives of competitors' customers or prospective customers, without the knowledge of their employers or principals, as an inducement to influence their employers or principals to purchase or contract to purchase industry products from the maker of such gift or offer, or to influence such employers or principals to refrain from dealing or contracting to deal with competitors, is an unfair trade practice.

Rule 11.

The circulation of threats of suit for infringement of patent or trade-mark among customers or prospective customers of competitors, not made in good faith but for the purpose or with the effect of harassing or intimidating customers or prospective customers, or of unduly hampering, injuring, or prejudicing competitors in their businesses, is an unfair trade practice.

Rule 12.

The practice of coercing the purchase of one or more products as a prerequisite to the purchase of one or more other products, where the effect may be to substantially lessen competition or tend to create a monopoly or to unreasonably restrain trade, is an unfair trade practice.

Rule 13.

Withholding from or inserting in the invoice statements which make the invoice a false record, wholly or in part of the transaction represented on the face thereof, with the purpose or effect of misleading or deceiving purchasers or prospective purchasers, is an unfair trade practice.

Rule 14.

The practice by a member of the industry of selling or marketing industry products through a pretended independent concern to induce the purchasing public to believe such concern is independent and in competition with the said member of the industry owning or controlling such concern, when such is not the fact, with the tendency or capacity to mislead or deceive purchasers, prospective purchasers, or the consuming public, is an unfair trade practice.

By the Commission,

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 1068—Filed, July 2, 1936; 9:34 a. m.]

INTERSTATE COMMERCE COMMISSION.

[Fourth Section Application No. 16399]

CEMENT FROM LEEDS, ALA., TO ALBANY, GA.

JULY 2, 1936.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: J. E. Tilford, Agent.
Commodities involved: Cement, hydraulic, natural and portland, in carloads.
From: Leeds, Ala.
To: Albany, Ga., and intermediate points on the Atlantic Coast Line Railroad.
Grounds for relief: Carrier competition and grouping.

Any interested party desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice; otherwise the Commission may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1070—Filed, July 2, 1936; 12:32 p. m.]

[Fourth Section Application No. 16400]

ROSIN AND RELATED ARTICLES TO CINCINNATI, O.

JULY 2, 1936.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act,

Filed by: J. E. Tilford, Agent.
Commodities involved: Rosin and related articles taking the same rates, in carloads.
From: Points in southeastern territory.
To: Cincinnati, O.
Grounds for relief: Carrier competition and grouping.

Any interested party desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice; otherwise the Commission may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1071—Filed, July 2, 1936; 12:32 p. m.]

[Fourth Section Application No. 16401]

GASOLINE AND KEROSENE FROM PANAMA CITY TO RIVER JUNCTION AND TELOGIA, FLA.

JULY 2, 1936.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4(1) of the Interstate Commerce Act,

Filed by: Atlantic Coast Line Railroad Company.
Commodities involved: Gasoline and kerosene, in tank cars, carloads.
From: Panama City, Fla.
To: River Junction and Telogia, Fla.
Grounds for relief: To meet intrastate rates.

Any interested party desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice; otherwise the Commission may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1075—Filed, July 2, 1936; 12:32 p. m.]

[Fourth Section Application No. 16402]

GRAVEL FROM RIVERTON, IND., TO BETHEL, ILL.

JULY 2, 1936.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act,

Filed by: R. A. Sperry, Agent.
Commodity involved: Gravel, road surfacing (not suitable for concrete road construction), carloads.
From: Riverton, Ind.
To: Bethel, Ill.
Grounds for relief: Motor truck competition.

Any interested party desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice; otherwise the Commission may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1072—Filed, July 2, 1936; 12:33 p. m.]

[FOURTH SECTION APPLICATION NO. 16403]

SALT FROM EDITH, OKLA., TO INTERSTATE POINTS

JULY 2, 1936.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act,

Filed by: F. A. Leland, Agent.
Commodity involved: Salt, in bulk and packages, carloads.
From: Edith, Okla.
To: Points in official, southern, western, and southwestern territories.
Grounds for relief: Carrier and market competition and grouping.

Any interested party desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice; otherwise the Commission may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1073—Filed, July 2, 1936; 12:33 p. m.]

[Fourth Section Application No. 16404]

BINDER TWINE FROM NEW ORLEANS, LA., TO THE TWIN CITIES

JULY 2, 1936.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act,

Filed by: L. E. Kipp, Agent.
Commodity involved: Binder twine, carloads.
From: New Orleans, La.
To: Minneapolis, Minnesota Transfer and St. Paul, Minn., via barge and rail routes.
Grounds for relief: Market competition.

Any interested party desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice; otherwise the Commission may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1074—Filed, July 2, 1936; 12:33 p. m.]

[Fourth Section Application No. 16405]

MOLASSES AND SYRUP FROM LOUISIANA TO VIRGINIA PORTS

JULY 2, 1936.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: J. E. Tilford, Agent.
Commodities involved: Molasses and syrup, carloads.
From: Points in Louisiana.
To: Virginia ports.
Grounds for relief: Water competition.

Any interested party desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice; otherwise the Commission may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1076—Filed, July 2, 1936; 12:34 p. m.]

ORDER

At a Session of the Interstate Commerce Commission, Division 5, held at its office in Washington, D. C., on the 26th day of June, A. D. 1936.

[Docket No. BMC 50433]

APPLICATION OF GODFREY FRANK WOOTTON FOR AUTHORITY TO OPERATE AS A COMMON CARRIER

In the Matter of the Application of Godfrey Frank Wootton, Individual, Doing Business as Shore Transportation Co., of 925 Atlantic Avenue, Atlantic City, N. J., for a Certificate of Public Convenience and Necessity (Form BMC 8, New Operation) Authorizing Operation as a Common Carrier by Motor Vehicle in the Transportation of Commodities Generally in Interstate Commerce between Atlantic City, N. J., New York, N. Y., and Philadelphia, Pa., with Occasional Trips into the States of Connecticut, Delaware, Florida, Georgia, Illinois, Indiana, Maryland, Massachusetts, New York, North Carolina, Ohio, Pennsylvania, South Carolina, Virginia, District of Columbia, West Virginia, and New Jersey Over Specific Routes

It appearing, That the above-entitled matter is one which the Commission is authorized by the Motor Carrier Act, 1935, to refer to an examiner:

It is ordered, That the above-entitled matter be, and it is hereby, referred to Examiner A. J. Sullivan for hearing and for the recommendation of an appropriate order thereon, to be accompanied by the reasons therefor;

It is further ordered, That this matter be set down for hearing before Examiner A. J. Sullivan, on the 23rd day of July, A. D. 1936, at 9 o'clock a. m. (standard time), at the Chamber of Commerce, Philadelphia, Pa.;

And it is further ordered, That notice of this proceeding be duly given.

By the Commission, division 5.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1077—Filed, July 2, 1936; 12:34 p. m.]

ORDER

At a Session of the Interstate Commerce Commission, Division 5, held at its office in Washington, D. C., on the 25th day of June A. D. 1936.

[Docket No. BMC 50058]

APPLICATION OF KENNETH P. ALLER FOR AUTHORITY TO OPERATE AS A COMMON CARRIER

In the Matter of the Application of Kenneth P. Aller, Individual, Doing Business as Aller Transportation Company, of 1174 East Main Street, Columbus, Ohio, for a Certificate of Public Convenience and Necessity (Form BMC 8 New Operation) Authorizing Operation as a Common Carrier by Motor Vehicle in the Transportation of Commodities Generally, in Interstate Commerce, between Charleston, W. Va., and Chicago, Ill., via Huntington, W. Va., Over U. S. Highway 60, Thence to Portsmouth, Ohio, Over U. S. Highway 52, Thence to Columbus, Ohio, Over U. S. Highway 23, Thence to Kenton, Ohio, Over State Highway 31, Thence to Delphos, Ohio, Over U. S. Highway 308, Thence to Chicago, Ill., Over U. S. Highways 30 and 41.

It appearing, That the above-entitled matter is one which the Commission is authorized by the Motor Carrier Act, 1935, to refer to an examiner:

It is ordered, That the above-entitled matter be, and it is hereby, referred to Examiner W. A. Maidens for hearing and for the recommendation of an appropriate order thereon, to be accompanied by the reasons therefor;

It is further ordered, That this matter be set down for hearing before Examiner W. A. Maidens, on the 27th day of July A. D. 1936, at 9 o'clock a. m. (standard time), at the Deshler Wallick Hotel, Columbus, Ohio;

And it is further ordered, That notice of this proceeding be duly given.

By the Commission, division 5.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1078—Filed, July 2, 1936; 12:34 p. m.]

ORDER

At a Session of the Interstate Commerce Commission, Division 5, held at its office in Washington, D. C., on the 25th day of June, A. D. 1936.

[Docket No. BMC 33548]

APPLICATION OF STAR CARTAGE COMPANY FOR AUTHORITY TO OPERATE AS A COMMON CARRIER

In the Matter of the Application of Star Cartage Company, a Corporation, of Washington Street, Steubenville, Ohio, for a Certificate of Public Convenience and Necessity (Form BMC 1), Authorizing Operation as a Common Carrier by Motor Vehicle in the Transportation of Commodities Generally in Interstate Commerce Over the Following Routes:

Route No. 1 Between Steubenville and East Liverpool, Ohio, over Ohio Highway 7.
Route No. 2 Between Steubenville and Bellaire, Ohio, over Ohio Highway 7.
Route No. 3 Between Lisbon and Salineville, Ohio, over Ohio Highway 164.
Route No. 4 Between Salineville and Wellsville, Ohio, over Ohio Highway 39.
Route No. 5 Between Salineville and Hammondsville, Ohio, via Irondale, over county road.
Route No. 6 Between Hammondsville, Ohio, and junction of Ohio Highways 213 and 7 over Ohio Highway 213.
Route No. 7 Between Salineville and Bergholz, Ohio, over county road.
Route No. 8 Between Bergholz and Amsterdam, Ohio, over Ohio Highway 334.
Route No. 9 Between Steubenville and Carrollton, Ohio, over Ohio Highway 43.
Route No. 10 Between Steubenville and Cadiz, Ohio, over U. S. Highway 22.
Route No. 11 Between Bridgeport and St. Clairsville, Ohio, over U. S. Highway 40.
Route No. 12 Between East Liverpool, Ohio, and Chester, W. Va., over U. S. Highway 30.
Route No. 13 Between Steubenville, Ohio, and Weirton, W. Va., over U. S. Highway 22.
Route No. 14 Between Steubenville, Ohio, and W. Va. Highway 2, over Market Street Bridge.
Route No. 15 Between Bellaire, Ohio, and Benwood, W. Va., over Benwood Bridge.

Route No. 16 Between Chester and Benwood, W. Va., via Weirton, Wellsburg, and Greater Wheeling, over W. Va. Highway 2.
Route No. 17 Between Wellsburg, W. Va., and W. Va.-Pa. State line, over W. Va. Highway 27.
Route No. 18 Between Wellsburg and McKinleyville, W. Va., over W. Va. Highway 67.
Route No. 19 Between W. Va.-Pa. State line and Avella, Pa., over Pa. Highway 28.
Route No. 20 Between Avella and Atlasburg, Pa., over county road.
Route No. 21 Between Atlasburg and Burgettstown, Pa., over Pa. Highway 18.
Route No. 22 Between Burgettstown and Ligonier Valley, Pa., over county road.
Route No. 23 Between Burgettstown, Pa. and Follansbee, W. Va., via Eldersville, Pa., over county road.
Route No. 24 From the junction of Burgettstown-Follansbee and Colliers roads to Colliers, W. Va., over county road.
Route No. 25 Between East Liverpool, Ohio, and Rochester, Pa., over Pa. Highway 68.
Route No. 26 Between Rochester and Beaver Falls, Pa., over Pa. Highway 18.
Route No. 27 Between Rochester and Sewickley, Pa., over Pa. Highway 88.
Route No. 28 Between Sewickley and Coraopolis, Pa., over Pa. Highway 51 and county road.
Route No. 29 Between Coraopolis and Rochester, Pa., over Pa. Highway 51.

also over irregular routes from and between points in Ohio, West Virginia, Pennsylvania, New York, North Carolina, New Jersey, Michigan, Maryland, Illinois, Delaware, Kentucky, Indiana, District of Columbia, Virginia, South Carolina, Massachusetts, Georgia, Vermont, and Florida.

It appearing, That the above-entitled matter is one which the Commission is authorized by the Motor Carrier Act, 1935, to refer to an examiner:

It is ordered, That the above-entitled matter be, and it is hereby, referred to Examiner W. A. Maidens for hearing and for the recommendation of an appropriate order thereon, to be accompanied by the reasons therefor;

It is further ordered, That this matter be set down for hearing before Examiner W. A. Maidens, on the 24th day of July A. D. 1936, at 9 o'clock a. m. (standard time), at the Federal Building, Steubenville, Ohio.

And it is further ordered, That notice of this proceeding be duly given.

By the Commission, division 5.

[SEAL] GEORGE B. MCGINTY, *Secretary*.

[F. R. Doc. 1079—Filed, July 2, 1936; 12:35 p. m.]